@properties

LISTING CONTRACT AND DISCLOSURE AGREEMENT
(EXCLUSIVE RIGHT TO SELL)

In consideration of services to be performed by @properties of Central Indiana (Broker/Company), hereafter referred to as "Broker") for James Gilbert Dawn Gilbert ("Seller"). Seller appoints Broker as Seller's broker with irrevocable and exclusive right to sell, exchange, option, or lease the real property known as 10710 Dartmoor Way in Eagle Township, Boone County, Zionsville, Indiana, 46077 (zip code), legally described as The Club At Holliday Farms Section 8 Lot T5 (the "Property").

This contract begins on 02/24/2026, and expires at 11:59 PM on 12/31/2026 subject to the following terms and conditions:

List Price: ($ 515,000.00) Five Hundred Fifteen Thousand U.S. Dollars, **Possession:** _____ Seller represents that Seller

☐ is☒ is not delinquent on any loans which could constitute a lien on the Property;

Seller represents that the total loans affecting the Property ☐ do☒ do not exceed the list price and costs of sale. Seller is not a party to any bankruptcy proceeding. Also, Seller has the capacity to convey the Property by a General Warranty Deed or by _____. Did Seller acquire ownership of the property at a tax sale, Sheriff's sale, any judgment sale, or mortgage foreclosure proceedings? ☐ Yes☒ No.

Seller ☐ is☒ is not a "foreign person" (individually or entity). Seller ☐ is☒ is not subject to the Foreign Investment in Real Property Tax Act. See http:www.irs.gov/publications/p515/index.html.

Terms of Sale: The Property may be sold for cash in U.S. Dollars or any of the following methods indicated below:

☒ Conventional Mortgage ☐ Conditional Sales Contract
☒ Insured Conventional Mortgage ☐ FHA
☐ Assumption of Existing Mortgage Balance ☐ VA
☐ Other: _____

Property Offered for Sale: The above list price includes the Property together with any existing permanent improvements and fixtures attached **(unless leased or excluded)**, including, but not limited to, electrical and/or gas fixtures, heating and central air-conditioning equipment and all attachments thereto, built-in kitchen equipment, sump pumps, water softener, water purifier, fireplace inserts, gas logs and grates, central vacuum equipment, window shades/blinds, curtain rods, drapery poles and fixtures, ceiling fans and light fixtures, towel racks and bars, storm doors, windows, awnings, TV antennas, wall mounts, satellite dishes, storage barns, all landscaping, mailbox, garage door opener(s) with controls(s) AND THE FOLLOWING: **(if applicable, any smart home devices should be addressed in this paragraph and Seller shall provide any and all access code(s), password(s), or any other information required to operate such device(s), if included).**__

EXCLUDES THE FOLLOWING (include leased items): _____

Any existing improvements and fixtures permanently installed and affixed which Seller does not want included in the sale shall be removed by Seller prior to the effective date of this listing and replaced with an appropriate substitute, if applicable. Seller shall remove all debris and personal property not included in the sale.

A. EXCLUSIVE LISTING. The parties understand and agree that this is an exclusive right to sell, option, exchange or lease listing, and Broker shall be entitled to the commission hereinafter established which shall be payable in U.S. Dollars upon the occurrence of any of the following events:

1. at the time the Property is sold, optioned, exchanged or leased by any person, including the Seller, to any person during the term of this contract or any renewal or extension thereof,
2. at the time Seller, Broker, or any other real estate licensee secures a buyer or lessee ready, willing, and able to purchase, option, exchange or lease the Property for such price and terms as specified, or such other price or terms as Seller may accept,
3. at the time an agreement is entered into sell, exchange, option or lease during the term of this contract or any renewal or extension thereof, and ultimately completed after the termination of this contact,
4. the Property is sold, optioned, leased, or exchanged by Seller or any person within 30 days after termination of this Listing Contract to any person procured in whole or in part by the efforts of Broker, any cooperating broker, or Seller, provided, however, this extension clause shall not apply if this Exclusive Listing Contract and Disclosure Agreement terminates and the Property is listed exclusively with another licensed broker, or
5. at the time of default by Seller to any valid, fully executed, written agreement to sell, option, exchange, or lease the Property.

Any commission required to be paid under items 1. 3. and 4. above shall be due and payable at the closing of the transaction when title to or any interest in the Property is transferred to a buyer or lessee. Any commission required to be paid under items 2. and 5. above shall be due and payable upon demand by Broker. In the event that commission is not paid when due, then Broker shall be entitled to interest rate of 6 % per annum until commission is paid.

If the Seller and Buyer sign a Purchase Agreement, Option to Purchase Real Estate, Lease or the closing of the sale of the Property will not take place until after the term of this contract, then this contract shall automatically be extended to coincide with the closing date or term of the lease.

B. LISTING BROKER COMPENSATION. The Broker's commission charged by the listing Broker for services rendered, with respect to any listing **is solely a matter of negotiation between Broker and Seller** and is not set by law, fixed, controlled, suggested, recommended or maintained by the Indiana Association of REALTORS®, Inc., the local Board/Association of REALTORS®, the listing service (if applicable) or any person or entity not a party to the contract.

Seller shall pay in cash in U.S. Dollars to Listing Broker Company for services performed by Listing Brokers a commission as follows:

a. 1.5 % of the total selling price, but not less than $_____ U.S. Dollars.
b. In the event of a purchase option, the Seller agrees to compensate Broker ____ % of the consideration paid for an Option to Purchase.
c. In the event of a lease, the Seller agrees to compensate Broker _____ % of all amounts to be paid by a lessee to Seller over the term of the lease.
d. It is understood by Seller the amount above does not include any compensation for a Buyer's Broker.

C. SELLER CONCESSIONS. Seller☒ does ☐ does not authorize Broker to advertise that Seller may be willing to consider offering seller concessions up to _____% of purchase price, payable to or on behalf of a Buyer at closing that may include directly compensating buyers broker. These concessions shall be negotiated between the seller and buyer in a written purchase agreement with agreeable terms to seller.

D. COMMISSION: ATTORNEY FEES. For purposes of this contract, the parties understand and agree that Broker's commission is deemed to be a share of the purchase money received by Seller. If any action is filed in relation to this Listing Contract, the unsuccessful party shall pay to the successful party a reasonable sum for the successful party's attorney's fees and court costs.

E. EARNEST MONEY. Broker is authorized to accept earnest money or any part of the purchase price and hold it in an escrow/trust account. In the event that Seller is to receive any portion of the earnest money, Seller authorizes Broker to keep any earnest money deposits up to the amount the commission would have been if the sale was completed in payment for Broker's expenses, services and advertising.

F. LISTING SERVICE INFORMATION (IF APPLICABLE). It is understood that the Broker may rely on the validity of the data pertaining to this Listing Contract which has been provided by the Seller, and the Seller agrees that Broker may disclose

the data to a listing service, internet or any advertising media and that the Broker may furnish notice to a listing service or other provider of all changes of information concerning the Property. Seller has been advised of the benefits of marketing a property through a listing service. Excluding a property from a listing service may result in a lower number of offers received and lower sales price.

G. INFORMATION REGARDING PROPERTY. Seller acknowledges that the information on the Seller's Residential Real Estate Sales Disclosure Form (if applicable) and the information provided for the listing is true and correct, and that Seller is the owner of the Property or is the authorized agent(s) of the true owner with complete and full authority to act on behalf of the owner(s). Seller further warrants that no other listing contract is now in force with any other broker. The Seller(s) or authorized agent(s) agree to indemnify, actively defend and hold Broker, Company and its agents harmless from any damages, loss, liability and expenses including attorney fees and costs, arising from incorrect information or failure to supply material information regarding the Property, including, but not limited to the condition of appliances, heating, plumbing, electrical, sewage, major defects in structure, mold and/or other environmental conditions or hazards, location of property lines, public and private restrictions on the use of the Property, any loss or liability in conjunction with this agreement or with Broker or other licensees showing the Property including, but not limited to, injuries suffered by other licensees or prospective buyers.

H. ENVIRONMENTAL CONTAMINANTS ADVISORY/RELEASE. Seller acknowledges that Listing Broker, Selling Broker and all licensees associated with Brokers are NOT experts and have NO special training, knowledge or experience with regard to the evaluation or existence of possible lead-based paint, radon, mold and other biological contaminants ("Environmental Contaminants") which might exist and affect the Property. Environmental Contaminants at harmful levels may cause property damage and serious illness, including but not limited to, allergic and/or respiratory problems, particularly in persons with immune system problems, young children and/or the elderly.

Seller agrees to consult with appropriate experts and accepts all risks for Environmental Contaminants and releases and holds harmless all Brokers, their companies and licensees from any and all liability, including attorney's fees and costs, arising out of or related to any inspection, inspection result, repair, disclosed defect or deficiency affecting the Property, including Environmental Contaminants. This release shall survive the closing.

I. AGENCY DISCLOSURE AND POLICY.

Office Policy. Seller acknowledges @properties written office policy relating to agency is as follows:

a. **Seller Representation:** @properties will represent Sellers as their Agent and shall render services to act in the best interests of the Seller, create exposure of the property to prospective Buyer, and minimize potential liability to the Seller. I. C. 25-34.1-10-9.5 provides that a Licensee has an agency relationship with, and is representing, the individual with whom the Licensee is working unless (1) there is a written agreement to the contrary; or (2) the Licensee is merely assisting the individual as a customer without compensation. Licensee (Broker) represents the interests of the Seller as Seller's agent to sell the Property. Licensee owes duties of trust, loyalty, confidentiality, accounting, and disclosure to the Seller. The duties of accounting and confidentiality extend beyond the agency relationship unless disclosure of confidential information is required by law, becomes public or the client gives written consent to disclose. However, Licensee must deal honestly with a buyer and disclose to the buyer information about the Property. All representations made by Licensee about the Property are made as the agent of the Seller. Seller is advised that the Property may be sold with the assistance of other Licensees working as buyer agents.. Buyer agents are Licensees who show the Property to prospective buyers, but who represent only the interests of the buyer. Buyer agents owe duties of trust, loyalty, confidentiality, accounting, and disclosure to buyers. All representations made by buyer agents about the Property are not made as the agent of the Seller.

Indiana Law (I.C. 25-34. 1-1-10-9.5) provides that an agent must also perform the following duties for a seller:

1. Be available to receive, timely present and answer questions regarding offers, counter offers, notices, various addenda, and contingencies pertaining to the subject property.
2. Assist in negotiating, completing real estate forms and communicating in relation to the offers and counter offers until a purchase agreement is signed and all contingencies are satisfied or waived.
3. Attend, participate and advise the Seller during closing.

b. **Buyer Representation.** @properties will represent Buyers as their Agent and shall render services to act in the best interests of the Buyer, diligently attempt to locate property acceptable to Buyer, and negotiate price, terms, and conditions that are acceptable to Buyer.

c. **Limited Agency Authorization**. In accordance with Indiana law, I.C. 25-34.1-10-12, Licensee or the managing broker may represent Buyer as a buyer agent if such a Buyer wishes to see the Property, Licensee has agency duties to both Seller and Buyer, and those duties may be different or even adverse. Seller also acknowledges Seller knowingly consents to Licensee acting as a limited agent for such showings.

If limited agency arises, Licensee **shall not disclose** the following without the informed consent, in writing, of both Seller and Buyer:

a. Any material or confidential information, except adverse material facts or risks actually known by Licensee concerning the physical condition of the Property and facts required by statute, rule, or regulation to be disclosed and that could not be discovered by a reasonable and timely inspection of the Property by the parties.
b. That a Buyer will pay more than the offered purchase price for the Property.
c. That Seller will accept less than the listed price for the Property.
d. Other terms that would create a contractual advantage for one party over another party.
e. What motivates a party to buy or sell the Property.

In a limited agency situation, the parties agree that there will be no imputation of knowledge or information between any party and the limited agent or among Licensees. Seller also acknowledges that Licensee owes both parties honest and fair dealings, but is not authorized to disclose information that is personal to the Seller and does not affect the condition of the real estate.

Seller acknowledges that Limited Agency Authorization has been read and understood. Seller understands that Seller does not have to consent to Licensee(s) acting as limited agent(s). **Seller** ☒ **does** ☐ **does not give voluntary, informed consent to limited agency.** If limited agency is accepted by both parties to the transaction, Seller understands and approves that Listing Broker may receive compensation from a Buyer. Seller further waives any claims, damages, losses, expenses, including attorneys' fees and costs, against Licensee(s) arising from Licensee's(s') role of limited agent(s).

d. **Acknowledgements.** This undersigned client acknowledges that:
1. Article 1 of the National Association of REALTORS® Code of Ethics and Standards of Practice states: "When representing a buyer, seller, landlord, tenant, or other client as an agent, REALTORS® pledge themselves to protect and promote the interests of their clients. This obligation to the client is primary, but it does not relieve REALTORS® of their obligation to treat all parties honestly."
2. That they have been provided the opportunity to have an attorney, tax accountant or other professional advise them regarding any consequences of this agreement, legal or otherwise, and
3. That they have read and understand the entire agreement and have approved the agency relationship defined.

J. SELLER AUTHORIZATION AND COOPERATION. Seller agrees to provide Broker with the required information necessary for entry into a listing service, internet or other advertising media, to include electronic media and the use of any exterior/interior photos, if applicable. Seller will cooperate with Broker by permitting the Property to be shown at reasonable times and authorizes Broker to place and remove "For Sale" and other signs on the Property.

1. Seller authorizes Broker and cooperating brokers, buyer brokers, Broker's personal assistants, contractors, inspectors, appraisers and others reasonably necessary to market the Property to enter the Property. Seller acknowledges that a buyer may enter the Property with contractors, inspectors or appraisers without being accompanied by Broker. Buyer or Buyer's broker may take videos, photos and electronic images of the Property.
2. Seller will provide Broker with key(s) necessary to access the Property.
3. Seller authorizes Broker to have duplicate keys made.
4. Seller agrees not to rent or lease the Property during the term of this Listing Contract without written notification to Broker.

5. Seller agrees that Broker may work with buyer brokers to assist in performing Broker's duties according to the terms of this Listing Contract.
6. Seller grants to Broker an exclusive, non-revocable, copyright license to disseminate, publish, modify and reproduce all of the content of this Listing Contract, including but not limited to, price and terms of financing, seller concessions and any broker compensation paid by Seller if requested by an appraiser, on a closed sale, photographs, drawings, written descriptions, narratives, and videos obtained or produced by Broker and Brokers agents pursuant to this Listing Contract to members of the Indiana Association of REALTORS®, Inc., to other brokers upon request and to a listing service, Internet or any advertising media. Seller agrees that Broker shall own all rights, title and interest, including but not limited to, any copyright In Property Images taken by Broker's photographers or agents.
7. Seller authorizes its utility companies to divulge all utility information to Broker and to provide copies of utility statements, if requested. Seller's utility companies are as follows: _____ _____.
8. Seller authorizes its Homeowners Association (HOA) to divulge all HOA information to Broker and to provide copies of all HOA documents if requested. HOA Management Company: _____ _____. HOA Contact Information: _____. Seller acknowledges there are homeowner's association fees and/or assessments in the amount of $_____ U.S. Dollars per _____, which have been paid by Seller through _____, _____. HOA/Management Company may require payment from Seller prior to issuing verification of good standing and/or transfer of ownership.
9. Seller authorizes its lending institution to divulge all mortgage information to Broker and to provide copies of the note and mortgage, if requested. Seller's lending institution is _____ _____and the mortgage loan number is _____. If Seller's mortgage is subject to a prepayment penalty, Seller agrees to give timely written notice to Seller's lender that the mortgage is to be pre-paid from the sale proceeds of the Property, It is acknowledged that Seller's failure to give this notice may result in a pre-payment penalty to be paid by Seller.
10. Seller ☒ **does** ☐**does not** authorize Broker to disclose the existence of written offers to Buyer. If Seller has authorized disclosure of the existence of offers on the Property, Broker shall also disclose, if asked, whether offers were obtained by the listing licensee, another licensee in the listing firm or by a cooperating broker. (NOTE: Disclosure of individual and company names is not necessary.)
11. Seller ☐ is ☒ is not offering a limited home warranty.

K. LOCKBOX/KEY AUTHORIZATION/USE. To facilitate access to the Property, a lockbox installation ☐ is ☐ is not authorized, subject to the following acknowledgements/conditions:

1. Seller will safeguard valuables. Seller accepts responsibility for preparing the Property to minimize the likelihood of injury, damage and/or loss of personal property. Firearms and pets to be secured.
2. Seller acknowledges Broker is not an insurer of Seller's real estate and personal property and waives claims against Broker and Broker's authorized persons for loss and/or damage. Seller further agrees to indemnify and hold harmless Broker and all authorized persons from claims by third parties from all loss and/or damage.
3. Seller instructs Broker to make reasonable efforts to notify Seller of showing requests. If Seller cannot be contacted to schedule a showing, Seller ☒authorizes ☐ does not authorize Broker to access the Property.
4. Where a tenant/lessee occupies the property, it is Seller's sole responsibility to obtain tenant/lessee consent to allow the use of a lockbox/key and consent for Broker to access the property.

L. RECORDINGS AT THE PROPERTY. In the event Seller has a recording system at the Property which captures audio and/or video, Seller understands that recording and transmitting of audio and/or video may result in violation of state and/or federal laws. Seller acknowledges that prospective purchasers may photograph or video the interior of the Property. Seller should remove any items of a personal nature that Seller does not want photographed, recorded or transmitted, such as family photos, paperwork and other personally identifiable information. Seller hereby releases and indemnifies Broker Company and its agents from any liability which may result from any recording or transmitting at the Property.

M. FAIR HOUSING. The parties acknowledge that the Fair Housing Act prohibits discrimination in housing because of race, color, national origin, religion, sex, familial status, and disability. The National Association of REALTORS® Code of Ethics

also prohibits REALTORS® from discriminating on the basis of sexual orientation or gender identity. **Due to Fair Housing, Broker will not prepare, review, or submit personal information letters, including photographs, from buyer to seller.**

N. ADDITIONAL PROVISIONS.

1. Seller understands the terms of this Listing Contract and has received a copy,
2. The parties to this contract agree that it contains the entire agreement of the parties and cannot be changed except by their written consent.
3. The parties to this contract agree that it is binding upon the parties' heirs, administrators, executors, successors and assigns.
4. The parties to this contract agree that this Agreement/contract together with any and all subsequent forms, amendments and addenda may be executed simultaneously or in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. The parties agree that this Agreement/contract together with any and all subsequent forms, amendments and addenda may be transmitted between them electronically or digitally. The parties intend that electronically or digitally transmitted signatures constitute original signatures and are binding on the parties. The original documents shall be promptly delivered, if requested.
5. Broker may refer Seller to other professionals, service providers or product vendors, including lenders, loan brokers, title insurers, escrow companies, inspectors, pest control companies, contractors and home warranty companies. Broker does not guarantee the performance of any service provider. Seller is free to select providers other than those referred or recommended to Seller by Broker.
6. Broker is not and shall not be charged with the responsibility for the custody, management, care, maintenance, protection or repair of the Property nor for the protection or custody of any personal property located thereon, unless provided for in another written agreement.
7. Seller consents to receive communications from Broker via telephone, U.S. mail, email, and text message at the numbers/addresses provided to Broker unless Seller notifies Broker in writing contrary.
8. Where the word "Broker" appears, it shall mean "Licensee" as provided in I.C.25-34.1-10-6.8.
9. Seller discloses to Listing Broker that Seller is licensed and holds License# _____.

O. WIRE FRAUD. If you receive any electronic communication, directing you to transfer funds or provide nonpublic personal information, EVEN IF THAT ELECTRIC COMMUNICATION APPEARS TO BE FROM BROKER OR TITLE COMPANY, do not respond until you verify the authenticity by direct communication with Broker or Title Company. Do not rely on telephone numbers provided in the electronic communication. Such requests may be part of a scheme to steal funds or use your identity to commit a crime.

P. AFFILIATED BUSINESS ARRANGEMENT DISCLOSURE: This is to give seller notice that Owners and some affiliated Agents of @properties of Central Indiana have common ownership and/or a business relationship with various entities, including title companies and mortgage companies that may be referred to Buyer. Because these entities are related through ownership, the referring party may receive a financial or other benefit as a result.

THERE ARE OTHER TITLE AND MORTGAGE COMPANIES AVAILABLE WITH SIMILAR SERVICES. SELLER IS FREE TO USE THEIR BEST JUDGMENT TO DETERMINE IF THEY ARE RECEIVING THE BEST SERVICES AND THE BEST RATE FOR THOSE SERVICES AND ARE NOT REQUIRED TO USE ANY PARTICULAR TITLE COMPANY FOR THE TRANSACTION.

I understand that the referring party as described above may refer me for title services or mortgage services as described above and the referring party may receive a financial or other benefit as the result of this referral.

Q. FURTHER CONDITIONS.

_____

_____

_____

_____

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_____

_____

_____

Scott White RB14043279 DocuSigned by: James Gilbert 2/24/2026 | 1:59 PM PST

AGENT **IN LICENSE #** **SELLER'S SIGNATURE** **DATE**

@properties of Central Indiana RC51100159 James Gilbert

BROKER OR COMPANY NAME IN LICENSE# **PRINTED**

Signed by: MEGAN SULLIVAN 2/24/2026 | 5:35 PM CST DocuSigned by: Dawn Gilbert 2/24/2026 | 1:49 PM PST

ACCEPTED BY: MANAGING BROKER **SELLER'S SIGNATURE** **DATE**

Dawn Gilbert

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